

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LATT GEORGE,

Plaintiff,

-against-

DETECTIVE DANIEL BEDDOWS, Shield No. 7398,
DETECTIVE JENS MALDONADO, Shield No. 14155,
POLICE OFFICER KEITH FIGUEROA, Shield No.
28992, SERGEANT CONSTANTINO BARBERIS,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates BRONX
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
July 21, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: DETECTIVE DANIEL BEDDOWS, Shield No. 7398, 47th Precinct, 4111 Laconia Ave,
Bronx, NY 10466
DETECTIVE JENS MALDONADO, Shield No. 14155, 47th Precinct, 4111 Laconia Ave,
Bronx, NY 10466
POLICE OFFICER KEITH FIGUEROA, Shield No. 28992, 47th Precinct, 4111 Laconia
Ave, Bronx, NY 10466
SERGEANT CONSTANTINO BARBERIS, 47th Precinct, 4111 Laconia Ave, Bronx,
NY 10466

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

LATT GEORGE,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

DETECTIVE DANIEL BEDDOWS, Shield No. 7398,
DETECTIVE JENS MALDONADO, Shield No. 14155,
POLICE OFFICER KEITH FIGUEROA, Shield No.
28992, SERGEANT CONSTANTINO BARBERIS,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff LATT GEORGE, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On July 23, 2016, at approximately 12:10 am, the vehicle plaintiff was driving was pulled over by defendants in the vicinity of 243rd Street and White Plains Road, Bronx, New York and defendants arrested plaintiff and used excessive force against plaintiff during the course of the arrest by punching plaintiff in the face and body, and forcefully and violently pulling his arms in opposite directions, smashing his face against the ground, and placing their boots on plaintiff's head after he was handcuffed, causing plaintiff to suffer serious physical injuries, including but not limited to, a fractured nasal bone. Plaintiff was deprived of his constitutional rights when the individual defendants subjected plaintiff to the use of excessive force in violation of New York State law and the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff LATT GEORGE is and was at all times relevant herein a resident of the State of New York.

3. DETECTIVE DANIEL BEDDOWS, Shield No. 7398, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE DANIEL BEDDOWS, Shield No. 7398, is and was at all times relevant herein, assigned to the 47th Precinct.

5. DETECTIVE DANIEL BEDDOWS, Shield No. 7398 is being sued in his individual and official capacity.

6. DETECTIVE JENS MALDONADO, Shield No. 14155, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE JENS MALDONADO, Shield No. 14155 is and was at all times relevant herein, assigned to the 47th Precinct.

8. DETECTIVE JENS MALDONADO, Shield No. 14155 is being sued in his individual and official capacity.

9. POLICE OFFICER KEITH FIGUEROA, Shield No. 28992, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER KEITH FIGUEROA, Shield No. 28992, is and was at all times relevant herein, assigned to the 47th Precinct.

11. POLICE OFFICER KEITH FIGUEROA, Shield No. 28992 is being sued in his individual and official capacity.

12. SERGEANT CONSTANTINO BARBERIS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT CONSTANTINO BARBERIS, is and was at all times relevant herein, assigned to the 47th Precinct.

14. SERGEANT CONSTANTINO BARBERIS is being sued in his individual and official capacity.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On July 23, 2016, at approximately 12:10 am, the vehicle plaintiff was driving was unlawfully pulled over by defendants in the vicinity of 243rd Street and White Plains Road, Bronx, New York.

21. The defendant police officers did not have reasonable suspicion or probable cause to pull over plaintiff's motor vehicle.

22. Plaintiff was unlawfully arrested by defendants on July 23, 2016 at approximately 12:10 am in the vicinity of 243rd Street and White Plains Road, Bronx, New York.

23. Defendants used excessive force against plaintiff during the course of the unlawful arrest of plaintiff.

24. Specifically, defendants' grabbed plaintiff threw him down to the ground and repeatedly punched plaintiff in the face, placed their boots on plaintiff's head after he was handcuffed, and handcuffed plaintiff's wrists and ankles in an unreasonably tight and painful manner, causing plaintiff to suffer physical injuries throughout plaintiff's body, including but not limited to, a fractured nasal bone.

25. At no time relevant herein did plaintiff resist the defendant police officers unlawful arrest.

26. The force used against plaintiff by the defendants during the course of the arrest was unreasonable and was used without cause or legal justification.

27. Thereafter, defendants transported plaintiff to the 47th Precinct.

28. As a result of the physical injuries inflicted by the defendant police officers, plaintiff requested immediate medical attention.

29. Despite plaintiff's request for medical attention, the defendant police officers failed to provide timely medical attention for plaintiff.

30. Finally, after approximately 6 hours in custody, the defendant police officers finally requested medical attention and plaintiff was transported to Montefiore Hospital.

31. Plaintiff received medical attention at Montefiore Hospital for the injuries inflicted upon him by the defendant police officers.

32. Plaintiff was diagnosed with a non-displaced nasal fracture.

33. On July 23, 2016, at approximately 8:00 p.m., plaintiff was finally discharged from Montefiore Hospital.

34. Some of the police officer defendants observed their fellow officers violate plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent and /or stop their fellow officers from conducting the unlawful stop, question, search, frisk, and use of excessive force against plaintiff.

35. The unlawful stop, question, frisk, search and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully pulling over plaintiff's motor vehicle, stop, questioning, frisking, and searching without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The use of excessive force by defendants unlawfully punching him in the face, throwing him down to the ground and tightly handcuffing plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Failure to Intervene

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

45. Defendants failed to intervene to prevent the unlawful conduct described herein.

46. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff Latt George demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damage, and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

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ATTORNEY'S VERIFICATION

STUART E. JACOBS, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 July 21, 2019

/s/
STUART E. JACOBS, ESQ.